



Planning and Development Department

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A COMMUNITY OF CHOICE

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: An ordinance amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint.
Date: February 14, 2022

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral February 14, 2022
- Public Services Committee February 23, 2022
- Second Reading consideration February 28, 2022
- Public Services Committee March 8, 2022
- Third and Final Reading consideration March 14, 2022

Planning Commission Recommendation:

The Planning Commission heard this item at their February 7, 2022, meeting and by **unanimous** vote, found that the item met the review criteria for approval, made an amendment to decrease the minimum land area for a common landscape plan to 40 contiguous acres from 100-acres, and recommended the Governing Body approve the text amendment.

The Planning Commission Staff report is attached and has not been changed (Note: This staff report was pre-amendment.)

Attachments:

1. Ordinance as recommended by the Planning Commission.
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) TO CREATE A COMMON LANDSCAPING PLAN AND DEFINITION OF DEVELOPMENT FOOTPRINT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to create a common landscaping plan and definition of development footprint.

Section 3. That on February 26, 2022, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment with modifications.

Section 4. That Section 1.4.3 of the UDC is amended to add the following definition:

“Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.”

Section 5. That Section 6.3.10, is created to read as follows:

“6.3.10 Common Landscape Plan

As an alternative to individual site landscaping, developments of one hundred acres or larger in Light Industrial (LI) and Heavy Industrial (HI) zoning districts may submit a common landscape plan that would contribute to uniformity of a development’s collective appearance. Common landscape plans shall focus on providing landscaping that is beneficial to the public, consistent with the general landscape character and context of the area, and water conservation. Common landscape plans shall be administratively approved by the Director.

- a. ***Submittal Requirements.*** Applications for a common landscape plan may be initiated by all property owner(s) of all property subject to the common landscape plan, or an agent or entity authorized by all property owner(s) through mutual agreement or a property owner’s association.
- b. ***Application, Submittal, and Phasing.*** An applicant shall submit a conceptual common landscape plan, prepared by a licensed landscape architect, for the entire development based on presumed development footprints for the plan area. Installation of landscaping may be developed in phases and the developer

shall submit phasing plan in conjunction with submittal of common landscape plan. Phasing plans shall show general locations of landscaping, materials, plantings, groundcover, anticipated development footprints, and any transferred points within the plan area. As development occurs, site / landscape plans shall be submitted and reviewed by the City to determine that each site meets the intent of the common landscape plan.

c. ***Common Landscape Plan Standards.*** The landscape standards of Chapter 6.3 of the UDC shall apply, except as set forth below.

1. *Required Internal Landscape Area.* The Required Internal Landscape Area of Section 6.3.3 shall be ten (10) percent of the development footprint. Required internal landscaping may be transferred to other areas within the area subject to the plan. The use of required internal landscape trees within and adjacent to parking areas and as an addition to required street trees, is encouraged.
2. *Street Trees.* The Street Tree standards of 6.3.6 shall be adjacent to arterials, collectors, local streets, and interstates subject to City Forestry's standards for street trees and the Street Design Standards of Section 4.3, at the rate of one tree per sixty (60) feet of street frontage. Street trees shall be in the adjacent public right-of-way or seventy-five (75) feet of the property line adjacent to a street right-of-way if circumstances unique to the site prevent the placement of street trees within the right-of-way.

d. ***Tree Reduction and Relief of Requirements Allowance.*** Up to a twenty (20) percent reduction of the required number of internal and/or street trees may be granted by the Director based on specific site conditions and to best meet the development's collective appearance. If a tree reduction is approved:

1. A per tree monetary donation shall be made by the applicant to the City, for every tree reduced, to be deposited in a specific fund for use in purchasing and installing trees for the Greater Cheyenne Greenway and other City lands, including but not limited to, open spaces, park areas and rights-of-way.
2. The City Forester shall determine the monetary donation per tree yearly on January 1st of each year, based on the average wholesale and installation cost of trees from three regional wholesale nurseries. This fee shall be in effect for the calendar year and be available to the public.
3. A per tree monetary reduction can count toward the point system as a new tree.

- e. ***Review Criteria.*** In reviewing, providing comments, and making decisions on a proposed common landscape plan, the Director shall use the following criteria:
1. The proposed alternative design achieves the intent of the subject design standard to the same or better degree than the subject standard; achieves the goals and policies of PlanCheyenne to the same or better degree than the subject standard; and results in benefits to the community that are equivalent to or better than compliance with the subject standard; or
 2. The required landscaping on each lot is not practical because of location, topographic, or site constraints while the alternative design can accommodate site-specific issues.
 3. The plan represents a logical phasing plan for the development.
 4. Adequate utilities exist to serve the landscape elements detailed in the plan.
 5. The plan shall not place an undue fiscal burden on the City or other public entities.
 6. An entity has been identified for maintenance of common landscape plan elements and any necessary agreements can be executed within sixty (60) days of approval.
 7. Incorporates an area of at least forty (40) contiguous acres. For the purposes of area calculation, intervening rights-of-way shall be included in the measurement.
 8. The plan is prepared by a licensed landscape architect.
- f. ***Amendments and Alterations.*** Amendments to the common landscape plan may only be initiated with the consent of all property owner(s) of all property subject to the common landscape plan or an agent or entity authorized by all property owner(s) through mutual agreement or a property owners' association.
- g. ***Recording and Approval.*** Following approval of a Common Landscape Plan, the Director shall sign the plan and the applicant shall then record the plan on each affected lot or parcel in the office of the County Clerk and be responsible for any associated fees. The applicant shall provide a copy of the recorded plan to the Director prior to issuance of any building permits.
- h. ***Abandonment of Plan.*** In the event the applicant wishes to abandon the approved Common Landscape Plan, the Director must determine that abandonment of the plan is not detrimental to the plan area and that the applicant has taken reasonable and necessary steps to mitigate any non-conforming site conditions on existing sites in the plan area. Requests for abandonment may be initiated by the Governing Body, the Director, by all property owner(s) of all property subject to the common landscape plan, or an

agent or entity authorized by all property owner(s) through mutual agreement or a property owner's association. Upon Director determination that abandonment is acceptable, the Director shall sign any necessary releases to be filed with the office of the County Clerk."

Section 6. The aforementioned sections of the UDC are hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: February 14, 2022

SECOND READING: February 28, 2022

THIRD AND FINAL READING: March 14, 2022

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



A COMMUNITY OF CHOICE

Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

FEBRUARY 7, 2022

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to create a common landscaping plan and definition of development footprint.

CASE NUMBER: PLN-21-00017

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body approve text amendments to the Unified Development Code to create a common landscaping process and a definition of development footprint as outlined in this staff report, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant, and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The intent of this amendment is to create flexibility in landscaping options to allow an administrative option for a common landscape plan for Light Industrial (LI) and Heavy Industrial (HI) zoning district developments that are over 100-acres. The goal of the common landscape plan is to create overall plans that would contribute to uniformity of a development's collective appearance, place landscaping in areas that are more beneficial to the public, and promote water conservation.

DISCUSSION:

City staff has been working together with Parks and Greenway Planning and the City Forester to allow for alternative landscape requirements in areas where strict adherence to the landscape ordinance may not be in the best interest of the community. Specifically, issues with our current landscape code have

arisen in large development projects, such as Bison Business Park and Cheyenne Business Park, where alternative landscape plans could result in higher quality landscaping that is contextually more appropriate for the character of the area. Areas where staff envisions the proposed Common Landscape Plan option include large industrial developments in industrial zone districts that are presently developing. This includes business parks such as Bison Business Park, lands east of the Campstool Road, and future business parks with property owners' associations that may wish to annex. Under current landscaping standards large lots are required to calculate landscape requirements on the entirety of the site and administrative flexibility is limited to 10%, individual buffer yards, and individual sites.

Summarized below are highlights of the proposed amendment.

- A new definition, "Development Footprint," is proposed to allow developments to utilize their disturbed area for the purpose of calculating internal landscaping points and tree requirements, instead of the entirety of the lot.
- The Common Landscape Plan will only apply to developments comprised of 100-acres or more that are zoned Light Industrial (LI) and Heavy Industrial (HI) zoning district.
- Common Landscape Plans may be initiated by all landowners or an organization authorized to act on their behalf, like a property owners' association. Approved conceptual plans are recorded with County Real Estate Records on the individual properties.
- Common Landscape Plans are required to be prepared by a licensed landscape architect. Plans may estimate future development footprints and revise them as necessary. Subsequent plans for an individual site may be prepared by a design professional, but are required to comply with the approved concept plan.
- The internal landscape point calculations are based on the development footprint, instead of the entire lot area. The calculation is based on a 90% impervious coverage of the development footprint. Current LI levels are 85% of the entire area, and HI are 90%.
- A Common Landscape Plan allows for transfer of landscaping elements to other areas of the plan. The process encourages transferred elements to be located along public rights-of-way or parking areas. Transfers are required to be identified in the plan.
- The street tree standards of UDC 6.3.6 are modified to require street trees at the rate of one tree per 60 linear feet of street frontage instead of one per 40 feet. The street trees, as well as any transferred landscaping points may be clustered and are required to be located within 75' of the property line adjacent to the right-of-way to allow for more creative design that may better harmonize with the surrounding area.
- The ability to seek administrative relief of tree planting requirements is allowed. This could include up to a 20% reduction of the required internal or street trees. Approval is based on specific site conditions and to ensure that the reduction does not negatively affect the development's collective appearance. If a tree reduction were to be approved, the applicant would be required to pay a cash in-lieu fee equal to the cost of the tree and installation. In-lieu fees would be deposited into a specific fund for use in purchasing trees for the Greater Cheyenne Greenway and other City lands. The in-lieu fee is presently calculated annually by the City Forester for similar relief of street tree requirements.
- Specific review criteria are incorporated to aide in the administrative decision-making process. Key components of the review criteria include demonstration that adequate infrastructure exists to serve the plan area, the proposed plan does not put an undue burden on the City or other public utilities, and that an entity responsible for ensuring maintenance, such as a property owners' association, has been identified.
- Provisions for plan modification and plan abandonment administratively are included.

PROPOSED AMENDMENT:

The proposed amendment creates a new definition in the definitions section of Article 1 and a new section within the Landscaping section of Article 6. Upon recommendation by the Planning Commission, an ordinance reflecting the amendments as recommended will be drafted and presented to the Governing Body for approval. The proposed amendments are shown below.

New definition in UDC Section 1.4.3, Defined Terms, which reads as follows:

“Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.”

Create UDC Section 6.3.10 which reads as follows:

“6.3.10 Common Landscape Plan

As an alternative to individual site landscaping, developments of one hundred acres or larger in Light Industrial (LI) and Heavy Industrial (HI) zoning districts may submit a common landscape plan that would contribute to uniformity of a development’s collective appearance. Common landscape plans shall focus on providing landscaping that is beneficial to the public, consistent with the general landscape character and context of the area, and water conservation. Common landscape plans shall be administratively approved by the Director.

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 2. ***Street Trees.*** The Street Tree standards of 6.3.6 shall be adjacent to arterials, collectors, local streets, and interstates subject to City

Forestry's standards for street trees and the Street Design Standards of Section 4.3, at the rate of one tree per sixty (60) feet of street frontage. Street trees shall be in the adjacent public right-of-way or seventy-five (75) feet of the property line adjacent to a street right-of-way if circumstances unique to the site prevent the placement of street trees within the right-of-way.

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 - 2. The required landscaping on each lot is not practical because of location, topographic, or site constraints while the alternative design can accommodate site-specific issues.
 - 3. The plan represents a logical phasing plan for the development.
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 - 5. The plan shall not place an undue fiscal burden on the City or other public entities.
 - 6. An entity has been identified for maintenance of common landscape plan elements and any necessary agreements can be executed within sixty (60) days of approval.
 - 7. Incorporates an area of at least one hundred (100) acres. For the purposes of area calculation, intervening rights-of-way shall be included in the measurement.
 - 8. The plan is prepared by a licensed landscape architect.
- f. ***Amendments and Alterations.*** Amendments to the common landscape plan may only be initiated with the consent of all property owner(s) of all property subject to the common landscape plan or an agent or entity authorized by all property owner(s) through mutual agreement or a property owners' association.

- g. **Recording and Approval.** Following approval of a Common Landscape Plan, the Director shall sign the plan and the applicant shall then record the plan on each affected lot or parcel in the office of the County Clerk and be responsible for any associated fees. The applicant shall provide a copy of the recorded plan to the Director prior to issuance of any building permits.
- h. **Abandonment of Plan.** In the event the applicant wishes to abandon the approved Common Landscape Plan, the Director must determine that abandonment of the plan is not detrimental to the plan area and that the applicant has taken reasonable and necessary steps to mitigate any non-conforming site conditions on existing sites in the plan area. Requests for abandonment may be initiated by the Governing Body, the Director, by all property owner(s) of all property subject to the common landscape plan, or an agent or entity authorized by all property owner(s) through mutual agreement or a property owner's association. Upon Director determination that abandonment is acceptable, the Director shall sign any necessary releases to be filed with the office of the County Clerk."

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is consistent with Foundation 7, and principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

Foundation 7 – Developing in a Fiscally Responsible Way

Synopsis: The Cheyenne Area excels in providing services in a fiscally responsible way... The Plan aims to guide future growth to promote efficient use of public and private resources and to provide adequate public facilities to sustain our quality of life and to encourage continued growth. This includes allowing flexibility with site development for large sites and business parks.

Principle 7.2: Adequate Public Services

Synopsis: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner. The developments commonly eligible for this process are typically located on the fringe and appropriate development could reduce the necessity for water positively affecting the capacity of the water system.

Policy 7.2.C: Maintain Level of Service

Synopsis: The Cheyenne Area will coordinate with service providers and other governmental organizations that provide services to community residents to ensure that existing and new neighborhoods have adequate services, and that existing public facilities are properly maintained to serve the needs of current and future residents.

Principle 7.4: Provision of Essential Services

Synopsis: Our community will continue to provide essential services in an effective and efficient manner.

Policy 7.4.B: Long-Term Water Supply

Synopsis: Continue to coordinate with the Board of Public Utilities to plan for a long-term water supply, including conservation measures.

Principle 7.5: Funding of Quality-of-Life Services

Synopsis: Our community will consider how to fund quality of life services in an effective and efficient manner.

Policy 7.5.A: Funding for Quality-of-Life Services

Synopsis: Our community will continue to identify and provide funding for services and amenities that contribute to quality of life and economic vitality of the community, including parks and recreation, cultural and library facilities, and other services.

As shown above, the proposed amendment meets several of the Foundation, Policy, and Principles of PlanCheyenne and satisfies this review criterion.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence, or other purposes.

Assessment: This amendment proposes modifying the UDC for the purposes of updating lot coverage area and open space; thus, fulfilling requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:

- (i) In accordance with a comprehensive plan and designed to:
 - (A) Lessen congestion in the streets;
 - (B) Secure safety from fire, panic and other dangers;
 - (C) Promote health and general welfare;
 - (D) Provide adequate light and air;
 - (E) Prevent the overcrowding of land;

- (F) Avoid undue concentration of population; and
- (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.
- (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
- (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and
- (iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment:

This amendment proposes modifying the UDC for the purposes of encouraging landscaping better suited for the large, industrial development. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

WYO 15-1-602 (a):

The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment:

State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The Governing Body possesses the authority to amend regulations and therefore can amend the UDC to reflect this text amendment.

As listed above, the proposed amendment satisfies this review criterion.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment will not adversely impact the general health, safety and public welfare of Cheyenne and satisfies this review criterion.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d. Amending the UDC in this fashion provides a development option to create landscapes that are beneficial to the public, consistent with the general landscape character and context of a specific area, and promote water conservation. The amendments accomplish several policies within PlanCheyenne and are enabled by Wyoming State Zoning statutes. Lastly, updating this will not jeopardize the overall health, safety, and welfare of the community.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to create a common landscaping plan process and a definition of development footprint as outlined in this staff report, noting the request meets the review criteria of UDC 2.4.1.d.